

## M/s Supreme Ceramics Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 4 April 2013 · WRIT - C No. 18031 of 2013 · **Writ disposed; entire bill dated 22.3.2013 to be deposited by 10.4.2013, with a reminder that the licensee follow the Supply Code henceforth.**

### HEADNOTE

On a writ challenging electricity bills for want of the 15-day payment window under clauses 6.1(g) and 4.36(a) of the U.P. Electricity Supply Code, 2005, the Court disposed of the petition by directing that the entire amount of the bill dated 22.3.2013 be deposited by 10.4.2013 as a small protection for time consumed in litigation, and observed that the licensee should follow the statutory provisions henceforth.

### FACTUAL SUMMARY

M/s Supreme Ceramics Ltd. approached the Allahabad High Court against Paschimanchal Vidyut Vitran Nigam Ltd. challenging several electricity bills as defective on technical grounds. Counsel submitted that the licensee had not allowed the 15 days required under clauses 6.1(g) and 4.36(a) of the U.P. Electricity Supply Code, 2005, for payment of a bill dated 22 March 2013, and that the company was ready to deposit if that time were given. Licensee counsel stated that the relevant provisions would be adhered to for depositing the bill.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.1(g)

due-date-for-bill-payment

#### HOLDING

Where the consumer challenged bills for want of the 15-day payment period under clause 6.1(g) of the U.P. Electricity Supply Code, 2005 (counsel also citing clause 4.36(a)) and offered to pay if that time were allowed, the Court disposed of the writ by directing that the entire bill dated 22.3.2013 be deposited by 10.4.2013 as a small protection for time consumed in litigation, observing that the licensee should follow the statutory provisions henceforth. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER THE BILLS WERE DEFECTIVE OR WHETHER CLAUSES 6.1(G) AND 4.36(A) HAD IN FACT BEEN BREACHED

The Court fixed a deposit deadline without quashing the bills or construing the clauses. ¶ 1